

Crl. Misc.No. 10488-B of 2013

Muhammad Asif @ Kaloo

The State etc.

25.09.2013

Mr. Khalid Masood Sindhu, Advocate for the petitioner.
Ch. Muhammad Jahangir, DPG and Aman Ullah, SI along with record for the State.
Mr. Najeeb Faisal Chaudhary, Advocate for the complainant

The petitioner seeks post-arrest bail in case FIR No.58/2013 dated 25.01.2013 under sections 302/109/34 PPC Police Station Ichhara, Lahore.

2. Briefly stated the prosecution version as set forth in the FIR is that the brother of the complainant namely Muhammad Akram was a Driver in the Prison Department. In the night of 25.01.2013 at about 12:30 night two men and one woman entered into the room of Muhammad Akram and committed his death by firing. Hence, this FIR.

3. The learned counsel for the petitioner has contended that the petitioner is not nominated in the FIR and that he has been roped in the false case with malice; that sister in law of the petitioner filed habeas petition against the officials of CIA for recovery of sons, sister in law, brother in law and wife of the petitioner and due to this revenge the local police has been roped the petitioner in this case; that there is no direct or indirect evidence available against the petitioner so the case against the petitioner is one of further inquiry; that the petitioner remained under the physical remand but nothing was recovered from his possession; that the petitioner is previously non convict and non

record holder and that the petitioner is behind the bars since his arrest and his person is no more required for further investigation.

4. The learned DPG and the learned counsel for the complainant have vehemently opposed the petition. It is contended that during the investigation the petitioner was found guilty; that PWs have fully supported the prosecution version in their statements recorded under section 161 Cr.P.C; that the offence with which the petitioner was charged falls within prohibitory clause of section 497 Cr.P.C and that a brutal murder has been committed by the petitioner, so he is not entitled to the concession of bail.

5. Arguments heard and record perused.

6. Admittedly, the FIR was lodged against three unknown accused persons including two men and one woman and the deceased was working as Driver in the Prison Department at Lahore, who was murdered on 25.01.2013 at about 12:30 night. During investigation cell of the deceased was taken into possession by the I.O and through data of cell, the I.O procured CNIC number and collected data from NADRA. After procuring copies of CNIC relating to callers and same were shown to witnesses of the occurrence, who duly identified them and thereafter, data regarding outgoing and incoming calls was collected, which reflects that the present petitioner along with his co-accused abated the matter as the phone number trace from the cell of deceased relates to one Mst. Fozia Bibi, who is wife of Muhammad Ijaz, co-accused and sister in law of the present petitioner. Co-accused Mst. Fozia remained in contact with the petitioner and Muhammad Ijaz co-accused. The petitioner is involved in different cases of Dacoities along with his other co-accused and the co-accused are also

confined in different Jails. Evidence collected by the I.O in form of mobile data regarding incoming and outgoing calls and copies of CNIC relating to callers is admissible under Article 164 of the Qanun-e-Shahadat Order, 1984 and the same connects the petitioner with the alleged crime. The statements of PWs positively implicating the petitioner with commission of the offence, which are the sufficient pieces to prima facie, connect the petitioner with commission of the offence. In the supplementary statement specific motive was assigned to the petitioner and same was found correct during investigation. The act of the petitioner appears to be heinous, brutal and shocking. In the circumstances, the story of the prosecution with regard to motive, recovery, medical evidence and circumstantial evidence is plausible and sufficient incriminating material is available on the record to connect the petitioner with commission of the offence. For the foregoing reasons, I feel no hesitation in holding that the petition is devoid of force and the same is hereby dismissed.

(Aalia Neelum)
Judge

Approved for reporting.

Judge

***Tariq**